

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Robert E. Blackburn

Date: March 12, 2007

Ginny Kramer, Courtroom Deputy
Suzanne Claar, Court Reporter

Civil Case No. 05-cv-01853-REB

VIC BARBISH PERSONAL GEMS, et al.,

Mark McLeod
Mtchell Tyner, Sr.

Plaintiffs,

v.

WELLS FARGO & COMPANY,

Brian Berardini

Defendant.

COURTROOM MINUTES - JURY TRIAL - DAY ONE

8:35 a.m. Forty potential jurors are brought to the courtroom.

Fourteen potential jurors are seated in the jury box, before the Judge takes the bench.

8:50 a.m. Court in session.

Appearances of counsel.

Opening statements by the court.

9:23 a.m. Voir dire by the Court.

10:20 a.m. Court in recess.

10:30 a.m. Court in session.

10:30 a.m. Voir dire by the Plaintiff.

10:50 a.m. Voir dire by the Defendant.

Excused for cause:

1. 100090758

2. 100088187
3. 100095314

The Plaintiff passes the panel for cause.

The Defendant passes the panel for cause.

Plaintiff peremptory challenges:

1. 100104147
2. 100081942
3. 100116205

Defendant peremptory challenges:

1. 100092589
2. 100101042
3. 100114889

Jury Panel:

1. 100088028
2. 100088392
3. 100105537
4. 100087648
5. 100113150
6. 100110615
7. 100113458
8. 100099915

11:17 a.m. The jury panel is sworn.

The Court's Juror Code of Conduct is tendered to the jurors.

11:22 a.m. Court in recess.

11:42 a.m. Court in session.

The jury is present.

The Court instructs the jury.

The Court's sequestration order is in effect.

Opening statements will be limited to forty (40) minutes.

12:05 p.m. Court in recess and shall reconvene at 1:15 p.m.
1:17 p.m. Court in session.

1:18 p.m. Opening statements by, Mr. Tyner, for the Plaintiffs.

1:49 p.m. Opening statements by, Mr. Berardini, for the Defendant.

2:10 p.m. Court in recess.
2:27 p.m. Court in session.

The Plaintiff calls witness, Mr. Mario Barbish.

The witness is sworn.

2:28 p.m. Direct examination of the witness, Mr. Mario Barbish, by Mr. McLeod.

The Plaintiff offers Plaintiff's Exhibit 123.

No objections by the Defendant.

Plaintiff's Exhibit 123 is admitted into evidence.

3:32 p.m. Cross examination of the witness, Mr. Mario Barbish, by Mr. Berardini.

3:48 p.m. Court in recess.
4:05 p.m. Court in session.

Cross examination of witness, Mr. Mario Barbish, resumes.

The Defendant offers Defendant's Exhibit 228.

Objection by the plaintiffs.

Plaintiffs' objection is overruled.

Defendant's Exhibit 228 is admitted into evidence, after the redaction of the signature of Allen Bhak.

The Defendant offers Defendant's Exhibit 232.

No objections by the plaintiffs.

Defendant's Exhibit 232 is admitted into evidence.

The Defendant offers Defendant's Exhibit 235.

No objections by the plaintiffs.

Defendant's Exhibit 235 is admitted into evidence.

The Defendant offers Defendant's Exhibit 260.

No objections by the Plaintiffs.

Defendant's Exhibit 260 is admitted into evidence.

4:33 p.m. Redirect examination of the witness.

The witness is excused and released from subpoena.

4:40 a.m. The jury is excused and shall reconvene on March 13, 2007, at 8:30 a.m.

Stipulated Exhibits 1 through 43, 52, 108, 109, 115, are admitted into evidence.

4:50 p.m. Court in recess and shall reconvene on Tuesday, March 13, 2007, at 8:30 a.m.

Total court time: 5 hours and 49 minutes - Trial continued